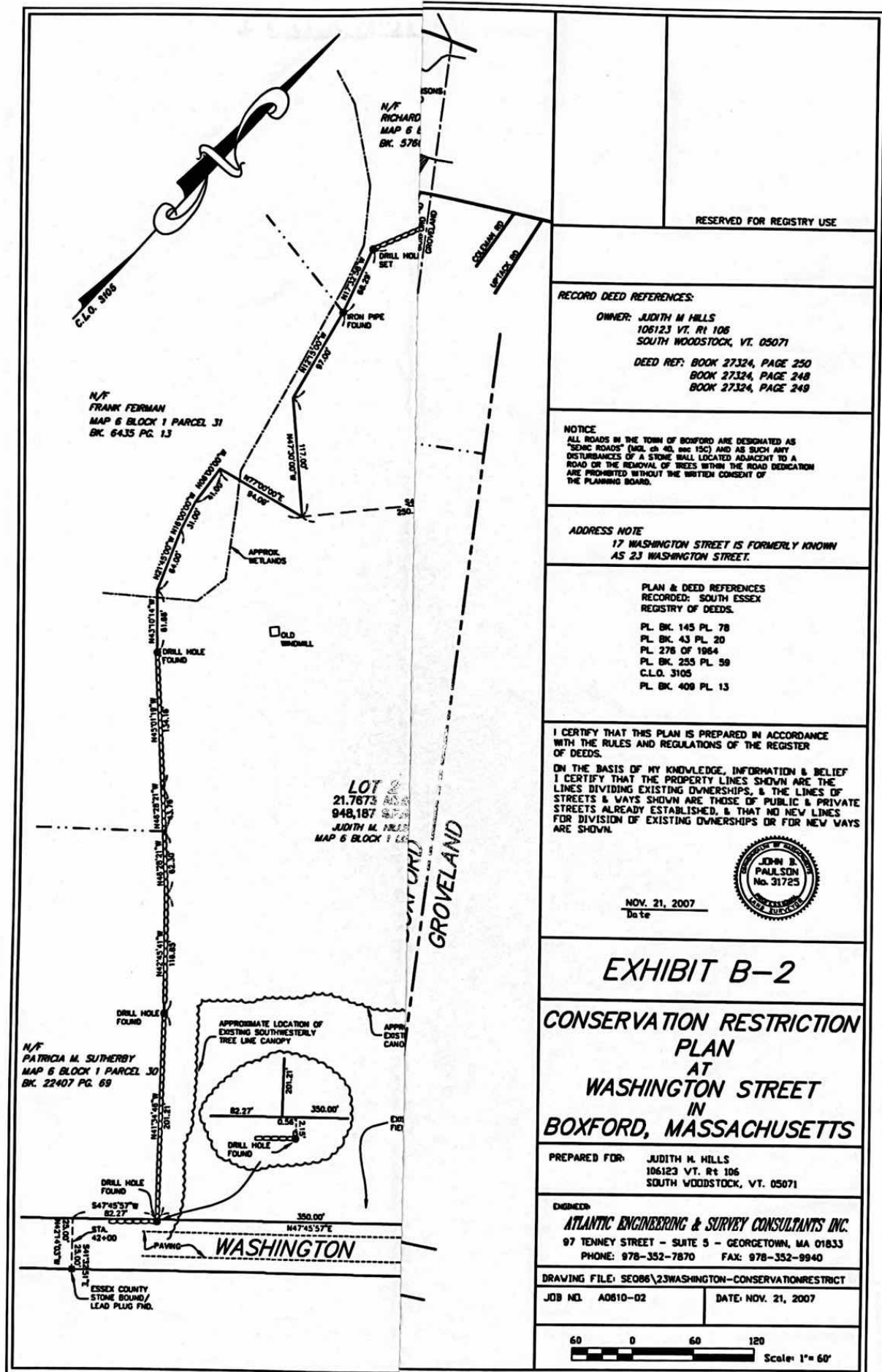


2. EXHIBIT B-1 AND EXHIBIT B-2 PLANS

	RECEIVED FOR RECORDING
	NOTICE: THIS PLAN IS NOT A GUARANTEE OF THE ACCURACY OF THE INFORMATION CONTAINED HEREIN. THE INFORMATION CONTAINED HEREIN IS FOR INFORMATIONAL PURPOSES ONLY AND DOES NOT CONSTITUTE A GUARANTEE OF THE ACCURACY OF THE INFORMATION CONTAINED HEREIN.
	APPROVED AND BY NOTARIAL OFFICE OF JAMES H. HARRIS AT 22 BAYFORD STREET
	PLAN A 2000 RECORDS RECORDED 2000-1-10 RECORD OF DEEDS PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30
	THIS PLAN IS NOT A GUARANTEE OF THE ACCURACY OF THE INFORMATION CONTAINED HEREIN. THE INFORMATION CONTAINED HEREIN IS FOR INFORMATIONAL PURPOSES ONLY AND DOES NOT CONSTITUTE A GUARANTEE OF THE ACCURACY OF THE INFORMATION CONTAINED HEREIN. NOTARIAL OFFICE OF JAMES H. HARRIS AT 22 BAYFORD STREET RECORDED 2000-1-10 RECORD OF DEEDS PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30
	EXHIBIT B-2 CONSERVATION RESTRICTION PLAN AT WASHINGTON STREET IN BAYFORD, MASSACHUSETTS
	PROPOSED FOR: JAMES H. HARRIS BAYFORD, VT. 05601 BAYFORD, MASSACHUSETTS
	NOTARIAL OFFICE OF JAMES H. HARRIS AT 22 BAYFORD STREET RECORDED 2000-1-10 RECORD OF DEEDS PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30
	RECORDED 2000-1-10 RECORD OF DEEDS PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30
	RECORDED 2000-1-10 RECORD OF DEEDS PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30 PL. 200, 100 PL. 30



3. ORTHOPHOTOGRAPH PLAN

Base Plan Orthophotograph

Legend

 Subject Property

 Contours

 OCP Wetlands

Project Number: B156

Date: December 06, 2007

This plan is represented only and is not
represented as an approved plan.



Scale: 1" = 150'

0 75 150 300

Feet

Judith M. Hills Property
Bedford, Massachusetts

Notes

LOT 1 is not subject to Conservation Easement

Legend

Jan Post Office System, Boston, MA 02108



Base Plan Orthophotograph

Legend

-  Subject Property
-  Contours
-  DEP Wetlands

Project Number 2188

Date: December 08, 2007

This plan is conceptual only and is not represented as an engineered plan.



Scale: 1" = 150'

0 75 150 300 Feet

Judith M. Hills Property
Boxford, Massachusetts

Notes:

LOT 1 is not subject to Conservation Restriction

LandVest

Ten Post Office Square, Boston, MA 02109



#19: Looking northerly across existing field on Lot 2.



#20: Looking northerly along the existing tree line and eastern boundary of Lot 2.



#13: Looking easterly along northern bound of Limited Building Area A.



#14: Looking northerly at Johnson's Pond from Lot 1.



#11: Looking southerly at representative woodlands on Lot 2.



#12: Looking southwesterly along boundary Lot 1 (stone wall marks the boundary). Lot 2 is to the left.



#7: Looking northeasterly at existing barn on Lot 1.



#8: Looking northerly along existing path on ~~both Lot 1 and~~ Lot 2.



#5: Looking northwesterly along southern bound of Lot 1 (Lot 1 is to the right and Lot 2 is to the left).



#6: Looking westerly at existing shed on Lot 2.

4. MASSACHUSETTS NATURAL HERITAGE AND ENDANGERED SPECIES PROGRAM PLAN



Natural Heritage and Endangered Species Program Plan

Legend



Property Outline



NHESP Estimated Habitats of
Rare Wildlife and Rare Species

Project Number: 8186

Date: December 06, 2007

*This plan is conceptual only and is not
represented as an engineered plan.*



Scale: 1" = 150'

0 75 150 300 Feet

Judith M. Hills Property
Boxford, Massachusetts

Notes:

LOT 1 is not subject to Conservation Restriction

LandVest

Ten Post Office Square, Boston, MA 02109

5. OPEN SPACE CONTEXT PLAN



Open Space Context Plan

Project Number: 0000

Date: December 06, 2007

This plan is not intended to be used as a legal document. It is not intended to be used as a legal document.



Scale: 1" = 4,000'

0 1,000 2,000 4,000 Feet

Judith M. Hahn Prop.

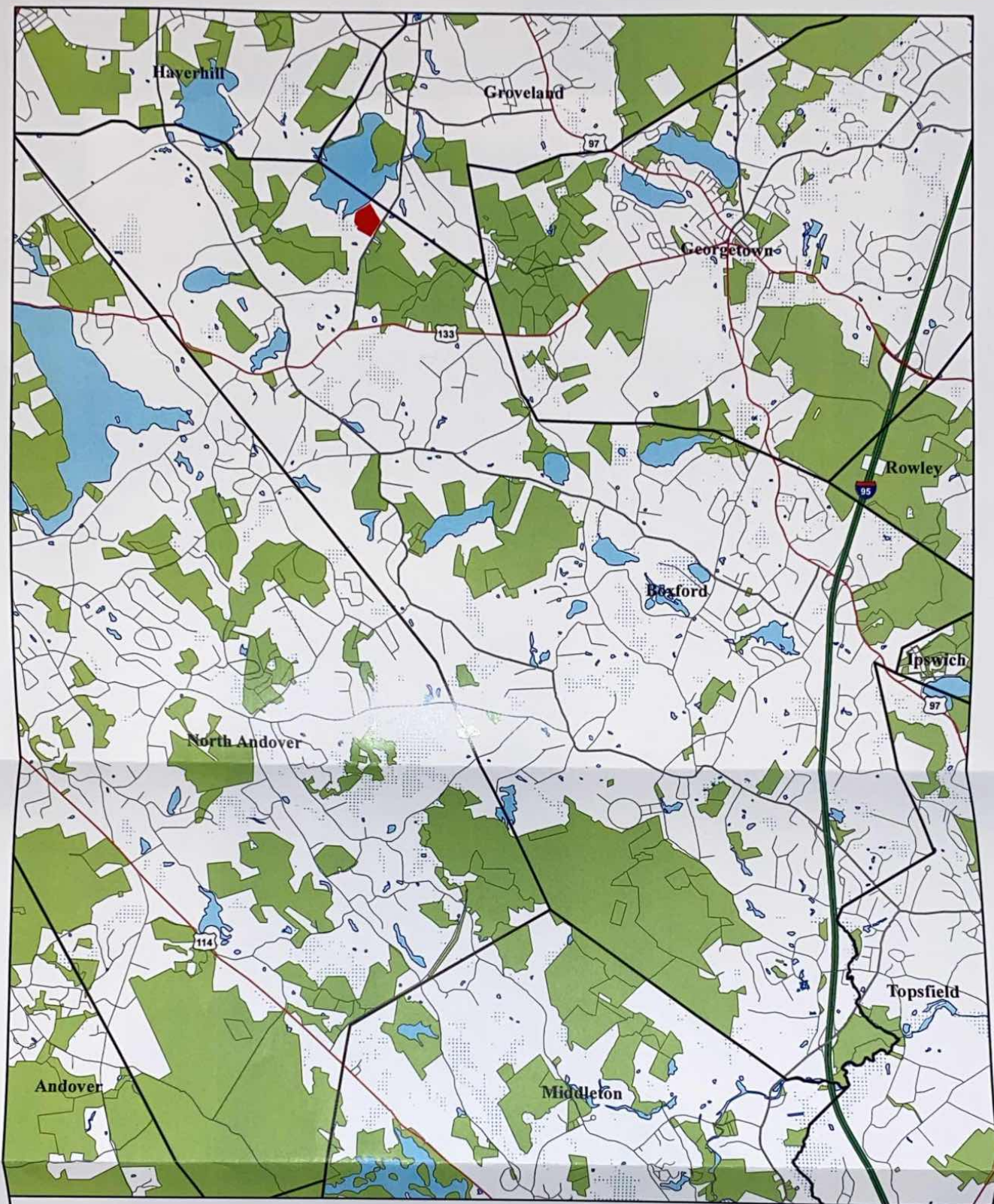
Bozeman, MT 59717

Phone:

1207 is not subject to Transportation Analysis

Landmark

Very Poor Office Building, Building, MT 59717



Open Space Context Plan

Legend

- Subject Property
- Open Space (Includes Chapter 61 Lands)
- Open Water
- DEP Wetlands

Project Number: 8186

Date: December 06, 2007

This plan is conceptual only and is not represented as an engineered plan.



Scale: 1" = 4,000'

0 2,000 4,000 8,000 Feet

Judith M. Hills Property
Boxford, Massachusetts

Notes:

LOT 1 is not subject to Conservation Restriction

LandVest

Ten Post Office Square, Boston, MA 02109

APPENDIX C

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS DIVISION OF CONSERVATION SERVICES

251 Causeway Street
Boston, MA 02114-2150
(617) 626-1012

DATE: 10/12/2007
MUNICIPALITY: Boxford
NUMERIC ASSIGNMENT: #33

CONSERVATION RESTRICTION FIELD INSPECTION

1. MUNICIPALITY: Boxford LOCATION (street, road, etc): 23 Washington Street
2. GRANTOR: Judith A. Hills, Trustee GRANTEE: Boxford Open Land Trust
3. NEW SITE: ☒ ADDITION TO SITE: _____ TOTAL ACRES: 21.76 TERM: Perpetual

4. ARE BUILDINGS INCLUDED? ☒ YES ☐ NO
(If yes, estimate value, condition, and existing or proposed use. (include photographs and negatives))

Farm outbuilding, possibly once used as a shed or stable, currently in poor condition.

5. PRESENT AND PAST USE OF SUBJECT PROPERTY AND ADJACENT LANDS:
(please include USGS topographical maps showing subject and adjacent public lands, if any)

Past use as farmland. Current use is farmland for portions of site abutting Washington Street (approximately 7 acres), and unimproved woodland for portions along Johnson's Pond (approximately 14 acres).

6. BRIEF DESCRIPTION OF PROPERTY INCLUDING NATURAL RESOURCES AND ANY UNIQUE FEATURES:

Property is horseshoe-shaped, wrapping around a 2.63 acre parcel on Washington Street. Two scenic agricultural fields front on Washington Street. A wooded area behind these two fields includes approximately 700 feet of shoreline along Johnson's Pond. The terrain is flat in the area of the agricultural fields. The wooded area slopes moderately towards Johnson's Pond. The property includes a variety of natural communities, including healthy elm trees, black birches, oaks, maples and stands of very large white pines, as well as swans, a variety of duck species, Canada Geese, cormorants, and on land, turkey, coyote, deer, foxes, etc. The property is designated as NHESP wetlands habitat.

- a. Are prohibited activities sufficient to protect the resource values? ☒ Yes ☐ No
b. Are retained uses compatible with the preservation or protection of the natural resources?
☒ Yes ☐ No (if answers to 6a or 6b are no, please explain in 8 below)

7. ARE PUBLIC ACTIVITIES PERMITTED? ☐ Yes ☒ No
If yes, please explain NATURE and SCOPE: Not applicable

8. COMMENTS AND RECOMMENDATIONS:

The scenic values of the agricultural fields along Washington Street contribute significantly to the rural character of Boxford, particularly as they are located at the entrance to town along a key transportation route. The wooded slopes along Johnson's Pond contribute significantly to the scenic value of Johnson's Pond as viewed from Groveland. The property is important to the maintenance of the water quality and the habitat in, on, and surrounding Johnson's Pond, which

also serves as the backup water supply for the City of Haverhill. Across Washington Street from the property lies a medium-yield potentially productive aquifer; accordingly, protection of the property will help protect water quality in the pond and the adjacent recharge areas. The property runs down to marshland with thriving cattail community, has eskers, and rock outcroppings, a large well-maintained trail that circumnavigates the property, etc. The property is across the street from a large working farm (approximately 300 acres). Together these two properties contribute greatly to the scenic nature and agricultural character of west Boxford and the surrounding community. Preservation of the property in its current use will maintain the scenic vistas and agrarian character of this part of Boxford for generations to come.

INSPECTOR

Peter NicholasDATE: 9/27/2007

ACCOMPANIED BY _____

(2) Anderson Farm (owned by [illegible])

(3) [illegible] Farm (owned by [illegible])

(4) [illegible] Farm (owned by [illegible])

(5) [illegible] Farm (owned by [illegible])

(6) [illegible] Farm (owned by [illegible])

(7) [illegible] Farm (owned by [illegible])

(8) [illegible] Farm (owned by [illegible])

(9) [illegible] Farm (owned by [illegible])

(10) [illegible] Farm (owned by [illegible])

(11) [illegible] Farm (owned by [illegible])

Date: 9/27/2007

Page:

[Signature]
[Signature]
[Signature]
Peter Nicholas

MUNICIPAL CERTIFICATION

(We) the undersigned Conservation Commission of Boxford, Massachusetts (the certifier) hereby certify that the proposed conservation restriction is in the public interest in that it protects the existing agricultural fields and forest area on the site. The fields and forest on the site contribute to the rural character of Boxford, particularly as the subject fields and forest are located at the entrance to town along a key transportation route. The proposed Conservation Restriction will also limit future development within the wooded slopes along Johnson's Pond, a secondary drinking water supply for the City of Haverhill. These wooded slopes provide valuable protection for water quality and wildlife habitat, and enhance scenic vistas of Johnson's Pond.

The Proposed Conservation Restriction contributes to protected open space located in a portion of West Boxford between Hovey's Pond and Johnson's Pond. Although the property does not immediately abut any permanently protected open space, other open space and farmland parcels in said portion of West Boxford include:

- (1) The Walter K. Morss Berry Farm (APR land)
- (2) Alderbrook Farm (APR land)
- (3) Anvil Farm (owned by Town of Boxford)
- (4) Hovey's Pond Meadow (owned by Town of Boxford)
- (5) Potter's Farm (owned by BTA/BOLT, Inc.)
- (6) King's Tree Farm (in the CR approval process)
- (7) The Boxford Town Forest (owned by the Town of Boxford)
- (8) Millbrook Meadow (owned by Town of Boxford)
- (9) The Chadwick Mill (owned by BTA/BOLT, Inc.)
- (10) The West Forty (APR)
- (11) The property is across the street from Ingaldsby Farm, a 300-acre working farm under Ch. 61A.

Date: October 6, 2007

Signed:

Julia Schneider Matthews
[Signature]
[Signature]
Pete Richards

7. PHOTOSTATION PLAN

Photo Stations Plaza Orthophotograph

Legend



Subject Property

Project Number: 8766

Date: December 05, 2007

This plan is copyright only and is not
reproduced as an engineering plan



Scale: 1" = 100'

0 75 150 300
Feet

Judith M. Hills Property

Dorchester, Massachusetts

Notes

LEI 1 is not subject to Copyright Notice

LandMest

Top Post Office System, Boston, MA 02109



Photo Stations Plan Orthophotograph

Legend

Subject Property

Project Number: 8186

Date: December 06, 2007

This plan is conceptual only and is not represented as an engineered plan.



Scale: 1" = 150'

0 75 150 300 Feet

Judith M. Hills Property

Boxford, Massachusetts

Notes:

LOT 1 is not subject to Conservation Restriction

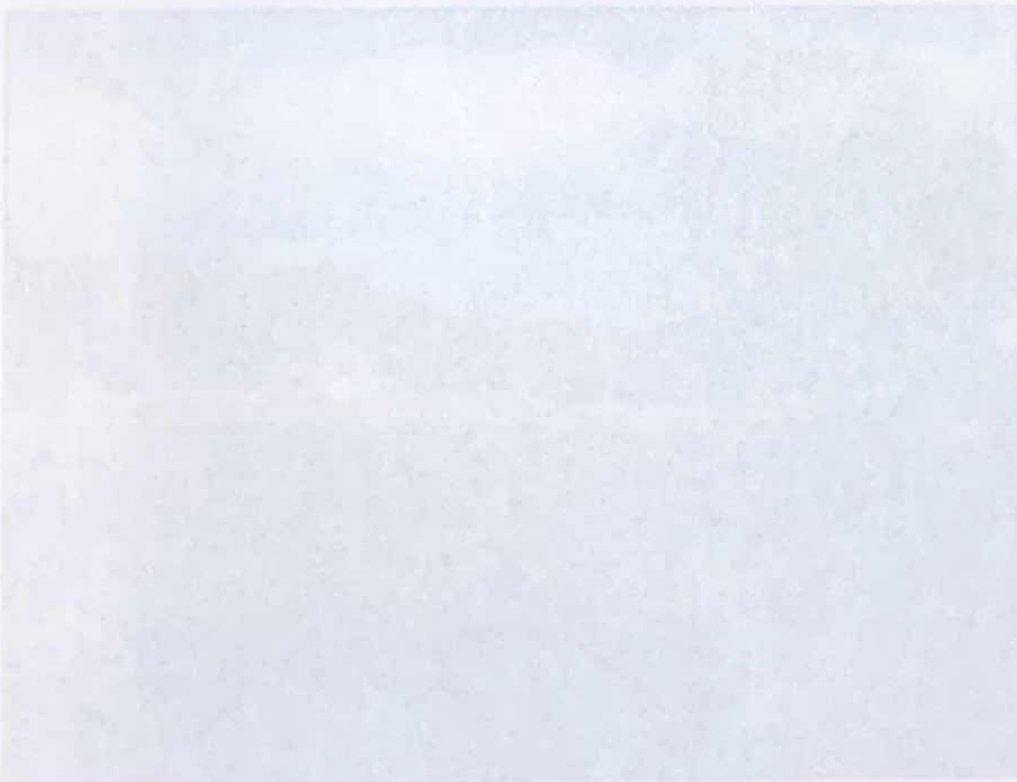
LandVest

Ten Post Office Square, Boston, MA 02109

8. PHOTOGRAPHS



81: Looking northerly across existing field on Lot 2 from southern corner of Lot 2.



82: Looking northerly at Lot 1 and Lot 2 (including improvements on Lot 2) from across Washington Street.

Hills Property — Boxford, MA

All Photos taken by Nick Pratt on December 1, 2007



#1: Looking northerly across existing field on Lot 2 from southern corner of Lot 2.



#2: Looking northerly at Lot 1 and Lot 2 (including improvements on Lot ¹~~2~~)
from across Washington Street. lot 1



#3: Looking southeasterly along existing tree line on Lot 2.



#4: Looking northeasterly along existing tree line on Lot 2.



#9: Looking easterly along bound of Lot 1 (Lot 1 is to the right and Lot 2 is to the left).



#10: Looking easterly along southern bound of Limited Building Area A.



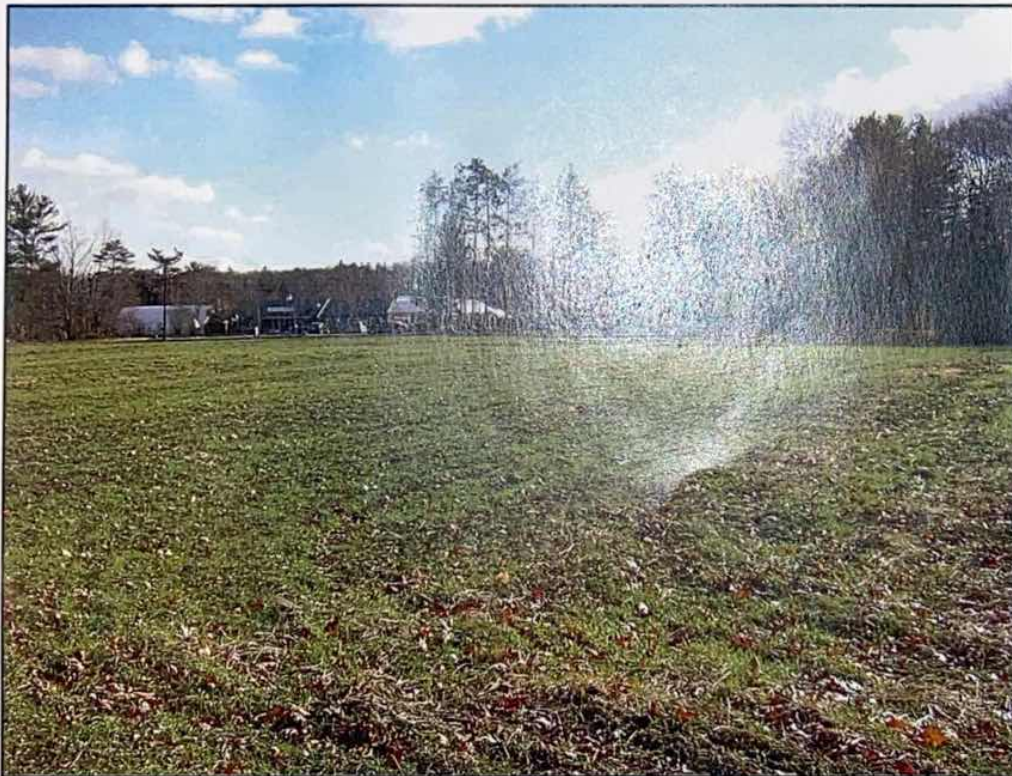
#15: Looking southwesterly from northeastern corner of Limited Building Envelope A.



#16: Looking northerly at Johnson's Pond along eastern boundary of Lot 2 (Lot 2 is to the left of stone wall). Pictured is an irrigation pipe that services the Ingaldshy Farm on the opposite of Washington Street. field on lot 2 (pumpkins)



#17: Looking southwesterly along existing tree line and field on Lot 2.



#18: Looking southeasterly along boundary of Lot 1 (Lot 1 is to the right and Lot 2 is to the left).



#21: Looking westerly along existing field on Lot 2 as well as improvements on Lot 1.

[illegible]

To be inserted upon Grantor's submission to Grantee of federal gift acknowledgment Form 8283

MUNICIPAL CERTIFICATION

(We) the undersigned Conservation Commission of Boxford, Massachusetts (the certifier) hereby certify that the proposed conservation restriction is in the public interest in that it protects the existing agricultural fields and forest area on the site. The fields and forest on the site contribute to the rural character of Boxford, particularly as the subject fields and forest are located at the entrance to town along a key transportation route. The proposed Conservation Restriction will also limit future development within the wooded slopes along Johnson's Pond, a secondary drinking water supply for the City of Haverhill. These wooded slopes provide valuable protection for water quality and wildlife habitat, and enhance scenic vistas of Johnson's Pond.

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- (1) The Walter K. Morss Berry Farm (APR land)
- (2) Alderbrook Farm (APR land)
- (3) Anvil Farm (owned by Town of Boxford)
- (4) Hovey's Pond Meadow (owned by Town of Boxford)
- (5) Potter's Farm (owned by BTA/BOLT, Inc.)
- (6) King's Tree Farm (in the CR approval process)
- (7) The Boxford Town Forest (owned by the Town of Boxford)
- (8) Millbrook Meadow (owned by Town of Boxford)
- (9) The Chadwick Mill (owned by BTA/BOLT, Inc.)
- (10) The West Forty (APR)
- (11) The property is across the street from Ingaldsby Farm, a 300-acre working farm under Ch. 61A.

Date: October 6, 2007

Signed:

Julia Schneider Matthews
[Signature]
Lara K. Sequin Spillman
Pete Richards

BTABOLT LAND PROTECTION CRITERIAWashington St.

BTABOLT is committed to pursuing a strategic method of land conservation in Boxford and to assisting the Town of Boxford and other conservation partners in acquiring land or interests in land that protect our ecological, agricultural, recreational, or scenic resources, values, and heritage.

BTABOLT will consider the following criteria in evaluating whether to support a land protection opportunity (other important factors not listed here, but relevant to a particular project, may also be considered by the Board at its discretion).

The point system below is only a guideline which attempts to quantify important conservation values (use points provided or check all that apply).

A. Factors Which May Promote BTABOLT's Involvement in a Conservation Project

- [X] Size of Parcel: 1 point for every 5 acres 21.7 acres
- [0] Adjacent to other Open Space: 1 point for every open space parcel that the land is adjacent to or connects to with a trail easement.
- [0] Adjacent to Bio Map Core Habitat/Supporting Landscape Habitat and Rare Species: 1 point for being adjacent to or containing Bio Map Habitat and if endangered species present, 3 points for each endangered species, 2 points for each threatened species, and 1 point of each species of special concern.
- [1] Conservation Value: 1 point if land protects wetland resource areas, watershed resource areas, ponds or riverfront/stream front areas, unique geological features, unique topographical features, or unique flora and fauna. Johnson Pond; Swamp
- [1] Scenic Value: 1 point if land protects scenic qualities or vistas important to the community.
- [1] Agricultural Value: 1 point if land promotes farming and/or agricultural activities such as forestry, dairying, or harvesting of hay and other crop products.
- [0] Historical Value: 1 point if land promotes historical values important to the community.
- [0] Recreational Value and Public Benefits: 1 point if public access, recreational opportunities, or other public benefits are available.
- [1] Boxford Open Space Report Designation: 1 point if the land is designated as Priority Open Space in the 1996 Open Space Report and as may be revised in the future.
- [1] Promotes Future Conservation: 1 point if land is located so as to promote expansion of conservation activity in the area.
- [0] Endowment Fund: 1 point if the landowner is willing to contribute funds toward the stewardship endowment for monitoring and maintenance purposes.

Notwithstanding the property's ranking using the above criteria, BTABOLT will not acquire an interest in land, by donation or by purchase, if the property would financially overburden BTABOLT, jeopardize its nonprofit status, tarnish the organization's reputation in the community, or impose unsustainable stewardship obligations.

JUDITH YILLS property 9/25/07
Washington St.

B. Factors Which May Limit BTA/BOLT's Involvement in a Project

- ☐ The property is too small to be significant for its conservation purpose and there is little likelihood of adjacent properties being protected to protect the area's conservation values.
- ☐ The proposed open space is part of a development proposal which is likely to have significant adverse impacts on conservation resources.
- ☐ Adjacent properties are being, or are likely to be, developed in a manner that would significantly diminish the conservation value of the property in question.
- ☐ There is reason to believe that the land or easement would be unmanageable or unenforceable within BTA/BOLT's resources (due to frequent incidence of destructive trespassing, multiple ownerships of land, mixed land uses, and/or irregular lot configurations).
- ☐ The property is found to be contaminated.
- ☐ Ethical or public image problems exist with the project.

C. Examples of Types of Conservation Methods used by BTA/BOLT

- Source of Information for Public about Conservation Methods and Values (newsletter/press/brochures)
- Facilitator/Negotiator/Coordinator (helping behind the scenes)
- Conservation Partner (with other conservation organization)
- Fee Ownership of Land
- Temporary Fee Ownership (with planned transfer to another entity/town)
- Conservation Restriction/Easement
- Trail Easement
- Limited Development (used in conjunction with the above methods to help fund protection of the majority of property involved).

1 house lot

Alan LeBovick
Commissioner of Revenues

MASSACHUSETTS DEPT. OF REVENUE
PO Box 7010
Chelsea, MA 02150-7010



ALAN LeBOVIDGE, COMMISSIONER
TERESA O'BRIEN-HORAN, DEPUTY COMMISSIONER

BOXFORD TRAILS ASSOCIATION
7 ELM ST
BOXFORD MA 01921-2321

870C

Notice 30048
Exemption Number 042 649 404
Date 02/05/07
Bureau TSD MGT SERV
Phone (617) 887-6367

Dear Taxpayer,

A review of our records indicates that the Massachusetts sales/use tax exemption for **BOXFORD TRAILS ASSOCIATION**, a tax-exempt 501(c) (3) organization, will expire on **03/09/07**.

The Department of Revenue is issuing this notice in lieu of a new Form St-2, "Certificate of Exemption". The notice verifies that the Massachusetts Department of Revenue has renewed the sales/use tax exemption for **BOXFORD TRAILS ASSOCIATION** subject to the conditions stated in Massachusetts General Laws, Chapter 64H, sections 6(d) or (e), as applicable.

The organization remains responsible for maintaining its exempt status and for reporting any loss or change of its status to the Department of Revenue. Absent the Department of Revenue's receipt of information from the taxpayer by the expiration date of the current certificate that the entity no longer holds exempt status under the above provisions, the taxpayer's certificate is renewed. This renewal will expire on 03/09/17.

The taxpayer's existing Form ST-2, in combination with this renewal notice may be presented as evidence of the entity's continuing exempt status. Provided that this requirement is met, all purchases of tangible personal property by the taxpayer are exempt from sales/use taxation under Chapter 64H or I respectively, to the extent that such property is used in the conduct of the purchaser's business.

Any abuse or misuse of this notice by any tax-exempt organization or any unauthorized use by any individual constitutes a serious violation and will lead to revocation. Willful misuse of this notice is subject to criminal sanctions of up to one year in prison and \$10,000 in fines (\$50,000 for corporations).

This notice may be reproduced.

Sincerely,

Alan LeBovidge
Commissioner of Revenue

Subj: **Re: your land**
 Date: 8/2/2007 1:19:46 P.M. Eastern Daylight Time
 From: Mymol
 To: judithhills@yahoo.com

Dear Judy -

It will probably be just as good and less expensive, if they just appraise what you have (I was told there may be more than 6 lots possible on the acreage) as land and not have an engineer literally carve out the lots for you. But again, get impartial, professional advice on this.

The appraisers are:

John Avery of Avery Associates
 282 Central Street
 Acton, MA
 978-263-5002
 FAX 978-635-9435

John Petersen of Petersen/LaChance Realty Advisors - Appraisal, Evaluation, Consulting
 100 Conifer Hill Drive
 Danvers, MA 01923
 978-750-6667
 FAX 978-750-0456

James Monahan
 LandVes10 Post Office Square
 Boston, MA 02109
 617-723-1800

He has an office up here in Ipswich - I'm looking for it - he is good, so be sure to talk to him as well.

Natasha

In a message dated 8/1/2007 4:01:57 P.M. Eastern Daylight Time, judithhills@yahoo.com writes:

Hi,

Thanks we will draw a sketch. I am wondering if we have to have it surveyed into the six lots which I understand we could carve out before I can have it appraised? We have planned to put the driveway on the edge and have worked out an easement. Yes please give me the name of the appraisers.

Thanks,

Judy

Get a sneak peek of the all-new AOL.com.

Subj: **Re: your land**
 Date: 8/5/2007 3:04:54 P.M. Eastern Daylight Time
 From: judithhills@yahoo.com
 To: Mymol@aol.com

Hi,
 You are correct I am so used to having to have a lawyer for each state. I will find some one up here.
 Thanks,
 Judy

Mymol@aol.com wrote:

Judy,
 Do you want a Boston law firm or someone more local to the area, i.e. Essex County? I should be careful referring you so as not to have an appearance of conflict of interest, since I am hoping/assuming that BTA/BOLT would hold the CR or the Agricultural Preservation Restriction - an equally good option and possibly less cumbersome approval-wise than a CR. If you talk to LandVest - Jim Monahan - they and Petersen/LaChance might be able to recommend a tax lawyer more in the area. You live in Vermont - the land preservation criteria and tax results are similar/same (IRS covers the nation!) to those in Massachusetts - anyone up there able to advise you - you would be looking at a big picture anyway, right?
 I can also ask Bob Ford who now works for the Sudbury Valley Land Trust and no longer for us, if he can suggest a good tax lawyer - do you want me to do that?
 Best,
 Natasha

In a message dated 8/5/2007 1:31:57 P.M. Eastern Daylight Time, judithhills@yahoo.com writes:

Hi,
 I will call these appraisers tomorrow. I am looking for a tax lawyer in Massachusetts any suggestions where to go to get a reference?

Thanks,
 Judy

Get a sneak peek of the all-new AOL.com.

BTA/BOLT, Inc. 8/20/07

Baseline information on proposed Conservation Restriction

Property owned by: Judith A. Hills, Trustee
Hills Family Realty Trust
17 Washington Street
Boxford, MA 01921

Site Data: Town of Boxford's Assessor's Map: Map 6, Block 1, Parcel 2
Deed Reference: Book 14932, Page 24

Size of Parcel: 21.7673 acres more or less

Located on Washington Street, opposite Ingaldsby Farm a 300 acre working farm.

The Hills' property has been farmed and hayed periodically by Ingaldsby Farm. Also has a woodland on Johnson's Pond.

Hill's property has approximately 651 feet of frontage on Johnson's Pond, in fact, a Great Pond, which is pristine and has been the back up water supply for the City of Haverhill, Ma.

In the same vicinity are other parcels of permanently protected land:

Stanwood Morss', APRed 125 acre farm, now owned by Nicodemo Scarfo and being actively farmed

Alderbrook Farm, APRed 70 acres in hayfields and woodlands with ponds and streams

Anvil Farm, 27 acres owned by the Town of Boxford with an APR held by Mass. Farm Bureau; actively farmed and a woodland with vernal pools, eskers, wetlands (BTA/BOLT, Inc. purchase assist, (\$1,000,500.) one million, 500 thousand dollars

Hovey's Pond Meadow, 8 acres owned by Town of Boxford, leased to cow farmer

Potter's Farm, 70 acres owned by BTA/BOLT, Inc. Woodlands, 7 vernal pools

King's Tree Farm, 27 acres (chap 61A), in process of having an APR put on it by BTA/BOLT, Inc. on Sperry's Pond

West 40, - 40 acres for which BOLT purchased the APR held by Mass. Farm Bureau on Hovey's Pond

~~EXHIBIT B1 AND EXHIBIT B2 RLANS~~

Paisley's - 12 acres, working truck farm and nursery, abuts King's Tree Farm (chap. 61A) on Sperry's Pond

Boxford Town Forest 60 acres, owned by Boxford, CR held by BTA/BOLT, Inc.

Pearl meadow - 8 acres owned by Boxford on Hovey's Pond

Natasha,

My comments on the draft Hill CR are set forth below:

- ✓ 1. The name of the Grantee should be changed to BTA/BOLT, Inc. (this has probably already been changed).
- ✓ 2. In section 2(b), I agree that thirty days is much, much too long, and that ~~48 hours~~ ^{10 days} is more reasonable.
- ✓ 3. In section 2.1(a), delete the word "material." Inclusion of subjective qualifier such as the term "material" is unnecessary here, and only serves to invite later disputes and litigation (i.e., arguments over whether the violation is material or not). Use of these types of subjective terms is admittedly sometimes necessary, but it is not necessary here.
- ✓ 4. Delete section 2.4 in its entirety. I have never seen a paragraph like this in any CR that I have reviewed before. Typically, the language of a CR specifically provides that whether or not to enforce the terms of a CR is left to the discretion of the Grantee. This gives the Grantee the discretion to make decisions about how far to go in enforcing a CR, taking into account its financial resources at the time and its other obligations. In contrast, this CR provides that the Grantor will be able to file a lawsuit against BTA/Bolt should the Grantor feel that BTA/Bolt is not taking fulfilling its obligations under the CR including, arguably, any obligation it may have to enforce the terms of the CR. The paragraph goes on to state that should the Grantor prevail in any lawsuit filed, BTA/Bolt would be responsible for its attorneys fees (obviously, even a fairly straight forward lawsuit can quickly accrue tens of thousands of dollars in attorney's fees). In my opinion, a non-profit should not agree to assume the potential financial burden that this paragraph seeks to impose. **In my opinion, the deleting this paragraph is essential.**
5. I would suggest adding in section 3(d) after "energy facility" the following: swimming pools, tennis courts, patios," because some people may not consider any of these things a "structure or facility" that is prohibited. The hope is to have a document that is as clear and unambiguous as possible.
6. With respect to paragraphs 4(d) and 6 (regarding subdivision), BTA/Bolt needs to be mindful that if this parcel is subdivided and comes under the ownership of more than one person/entity, this will increase the complexities of monitoring the CR significantly (i.e., more than one owner to interact with and potentially to run into problems with; more than one owner to put on notice of inspections, more than one owner to educate regarding the implications of owning land under CR, etc.). Paragraph 6(a) contemplates a transfer of a portion of the parcel to a non-profit, which I would not think would be problematic. With respect to the subdivision scenarios referenced in Paragraphs 6(b) and (c)(ii), however, the new owner would hold a relatively small parcel of land covered by the CR. This typically creates a situation where the importance of the CR is not on the owners radar screen and the CR with respect to this parcel becomes difficult to enforce (this is the reason BTA/Bolt has not been inclined to accept CR's on smaller parcels of land in someone's backyard). Just something to think about.

7. Section 4(o) would permit someone to remove trees and cover a substantial portion of the field and rest of the property with windmills and solar panels. I would suggest limitations be put on the provisions in this paragraph (perhaps limiting to a certain square footage).
8. I would think residence should be defined to include no more than *one* household or employee guest quarters or office. As it is currently worded, should Boxford zoning change (or should employee quarters be permitted as an agricultural use) multiple additional guest/employee quarters would be permitted. I'm not sure this was the intent. *on the 2 acres*
9. Please note that section 9 could result in numerous buildings being constructed in the wooded area or in the field. There is no current limit in terms of number of buildings or location or square footage, only a requirement that such buildings be related to agriculture or forestry. Thus, for example, as currently worded a huge indoor riding ring could be placed in the middle of the field, because raising and training horses is considered agriculture. I'm not sure that this is the intent. I would think some thought should be given to this paragraph.
10. In paragraph 10, the words "or other actions by Grantee or Grantee's Representatives other than as expressly permitted by this Restriction" should be deleted. This phrase makes the indemnification provision far too broad and vague.
11. In paragraph 12 the phrase "if such assignment is approved in advance in writing by Grantor" should be deleted. Keep in mind that the Grantor includes whoever owns the property at the time in question. The future owners of the property (who may or may not be interested in the CR being held by an entity capable of enforcing its terms) should not be dictating to whom the CR is assigned. What happens if some day many years in the future BTA/Bolt is not financially able to enforce the CR and the current owners don't assent to an assignment to another non-profit with the financial wherewithal to enforce it? Even if we change the language so as to require the assent of Judith Hill specifically, what happens if she is deceased? What happens if BTA/Bolt can't locate her because she has moved? This CR will last in perpetuity, and it is important to think of the ramifications of language once the current players are long gone.

Finally, we should have the title run at some point before execution of the CR so the BTA/Bolt file adequately reflects that BTA/Bolt has ascertained that Judith Hill's trust has clean title and the right to convey the CR.

Angela

Protect
Hill's

both
want same
thing?
how to
ensure?

Oct 11, 2007

Natasha,

My comments on the draft Hill CR are set forth below:

1. The name of the Grantee should be changed to BTA/BOLT, Inc. (this has probably already been changed).
2. In section 2(b), I agree that thirty days is much, much too long, and that 48 hours is more reasonable. The State may have different ideas on days; the shorter the better, we'll take 10 days.
3. In section 2.1(a), delete the word "material." Inclusion of subjective qualifier such as the term "material" is unnecessary here, and only serves to invite later disputes and litigation (i.e., arguments over whether the violation is material or not). Use of these types of subjective terms is admittedly sometimes necessary, but it is not necessary here. For the lawyers to discuss
4. Delete section 2.4 in its entirety. I have never seen a paragraph like this in any CR that I have reviewed before. Typically, the language of a CR specifically provides that whether or not to enforce the terms of a CR is left to the discretion of the Grantee. This gives the Grantee the discretion to make decisions about how far to go in enforcing a CR, taking into account its financial resources at the time and its other obligations. In contrast, this CR provides that the Grantor will be able to file a lawsuit against BTA/Bolt should the Grantor feel that BTA/Bolt is not taking fulfilling its obligations under the CR including, arguably, any obligation it may have to enforce the terms of the CR. The paragraph goes on to state that should the Grantor prevail in any lawsuit filed, BTA/Bolt would be responsible for its attorneys fees (obviously, even a fairly straight forward lawsuit can quickly accrue tens of thousands of dollars in attorney's fees). In my opinion, a non-profit should not agree to assume the potential financial burden that this paragraph seeks to impose. In my opinion, the deleting this paragraph is essential. For the lawyers, but BOLT agrees with this and would like it deleted
5. I would suggest adding in section 3(d) after "energy facility" the following: swimming pools, tennis courts, patios," because some people may not consider any of these things a "structure or facility" that is prohibited. The hope is to have a document that is as clear and unambiguous as possible. Agreed
6. With respect to paragraphs 4(d) and 6 (regarding subdivision), BTA/Bolt needs to be mindful that if this parcel is subdivided and comes under the ownership of more than one person/entity, this will increase the complexities of monitoring the CR significantly (i.e., more than one owner to interact with and potentially to run into problems with; more than one owner to put on notice of inspections, more than one owner to educate regarding the implications of owning land under CR, etc.). Paragraph 6(a) contemplates a transfer of a portion of the parcel to a non-profit, which I would not think would be problematic. With respect to the subdivision scenarios referenced in Paragraphs 6(b) and (c)(ii), however, the new owner would hold a relatively small parcel of land covered by the CR. This

typically creates a situation where the importance of the CR is not on the owners radar screen and the CR with respect to this parcel becomes difficult to enforce (this is the reason BTA/Bolt has not been inclined to accept CR's on smaller parcels of land in someone's backyard). Just something to think about. Angela's point well taken, however, since the Hills' absolutely wish to be able to do this, BOLT would insist that before a parcel is conveyed to anyone else, it must have a CR in place on it with language that no buildings/structures of any kind be put in the middle of the front fields. Things like run-in sheds, windmills, solar panels, along the side. BOLT really doesn't like the subdivision concept, therefore the fields, which are part of the reason stated in the recitals regarding open views of agricultural lands, must be protected from structures placed on them.

7. Section 4(o) would permit someone to remove trees and cover a substantial portion of the field and rest of the property with windmills and solar panels. I would suggest limitations be put on the provisions in this paragraph (perhaps limiting to a certain square footage). See above
8. I would think residence should be defined to include no more than *one* household or employee guest quarters or office. As it is currently worded, should Boxford zoning change (or should employee quarters be permitted as an agricultural use) multiple additional guest/employee quarters would be permitted. I'm not sure this was the intent. Only on the designated 2 acres
9. Please note that section 9 (I believe Section 8 is the intended) could result in numerous buildings being constructed in the wooded area or in the field. There is no current limit in terms of number of buildings or location or square footage, only a requirement that such buildings be related to agriculture or forestry. Thus, for example, as currently worded a huge indoor riding ring could be placed in the middle of the field, because raising and training horses is considered agriculture. I'm not sure that this is the intent. **I would think some thought should be given to this paragraph.** See comments on 6 above
10. In paragraph 10, the words "or other actions by Grantee or Grantee's Representatives other than as expressly permitted by this Restriction" should be deleted. This phrase makes the indemnification provision far too broad and vague. For the lawyers
11. In paragraph 12 the phrase "if such assignment is approved in advance in writing by Grantor" should be deleted. Keep in mind that the Grantor includes whoever owns the property at the time in question. The future owners of the property (who may or may not be interested in the CR being held by an entity capable of enforcing its terms) should not be dictating to whom the CR is assigned. What happens if some day many years in the future BTA/Bolt is not financially able to enforce the CR and the current owners don't assent to an assignment to another non-profit with the financial wherewithal to enforce it? Even if we change the language so as to require the assent of Judith Hill specifically, what happens if she is deceased? What happens if BTA/Bolt can't locate her because she has moved? This CR will last in perpetuity, and it is important to think of the ramifications of language once the current players are long gone. BOLT definitely does not like this provision. BOLT was entrusted with the original CR, it should be allowed to assign the CR to another entity in the belief/knowledge that that entity is capable,

willing and interested in upholding the CR. The Hills hold the same objectives, but wish that their family, assuming they own the property and have the same objectives, should have the right of approval. Not sure how this can be resolved, there being no guarantees as to who will own the land in the future and what their objectives will be. Further, if the land is subdivided and the field/s belong to someone other than the hills and/or their heirs, do the fee holders of the fields also have the same right to approve the transfer to another Land Trust that the other land is subject to? Too complicated.

Finally, we should have the title run at some point before execution of the CR so the BTA/Bolt file adequately reflects that BTA/Bolt has ascertained that Judith Hill's trust has clean title and the right to convey the CR. This has been done.

Angela

Comments in red by Natasha Grigg, reflect the conversation with Judith Hills and Lynn Murrell on October 11, 2007. I have added a few thoughts of my own, especially in item 11.

This first paragraph contains general comments and reactions to this final draft.

Upon looking first at all the “whereas” and then at page 9, where the stated PURPOSE is, we find that this, in fact, precludes a lot of building – there are too many buildings being asked for, which makes it impossible to maintain the Conservation Values of this property. **All the buildings in paragraph 5 have to be in the 2 Ac. Limited Building Area and the only others allowed in paragraph 8 cannot be in the fields (except for the run in sheds) and are limited to 5000 sq. ft. in area. That is 70 x 70 feet, or 1/8 Ac. That is a minimal impact on the remaining 19 Ac.** The desire to allow for commercial forestry, destroys the Conservation Values of this property. There is no prohibition of clear cutting. **8.1(b) requires a forestry plan certified to grantee to be in accordance with the provisions of the CR. This certainly precludes clear cutting** This reads much more like an Agricultural Preservation Restriction, allowing for multiple farm buildings, commercial agricultural and forestry activities, etc. **If you raise vegetables, such as Ingalsby does now, and want to sell them, that is commercial. If you breed your mare and want to sell the foal, that is commercial** There is none of that on the property now – that is its value. All buildings need to be restricted to the building envelope – the house and barn, and, currently illegal by the Boxford zoning laws, possible guest house. **All buildings in paragraph 5 have to be in the 2 Ac., the only other buildings are restricted to agricultural, are restricted to 5000 sq. ft. in area, and cannot be in the fields. And nothing in the CR can override local zoning.** A commercial stable is also not in keeping with the Conservation Values of the property – indoor arenas, clear cutting for more paddocks, large stables, machine sheds... **Again, limited to 5000 sq. ft. total and not in the fields. A dressage arena is 13,000 sq. ft. so it can't happen** The existing barn/shed may, of course, be repaired and enlarged, within reason.

There is also no reference to forbidding motorized vehicles such as motorcycles, ATVs, dirt bikes, helicopters, water skiis, etc. **Helicopters are prohibited by 3.(d). Water skis would probably be prohibited by the town and at any rate the pond isn't part of the property.** The only motorized vehicles to be allowed should be owners' vehicles to access the property and farm vehicles to work the land. **Its too late to bring this up, and at any rate if the grantor feels that damage to the conservation values is being done, they can seek remedies.**

no!

BTA/BOLT's interest in conserving this land is precisely to conserve as much as possible of what is there, the trees, ferns, habitat, not to create a large, built up, marketable property or to permit one to be created in the future. **Except for 2 1/8 Ac. You won't be able to tell the difference.**

This is also the longest CR document we have ever seen!

The following are specific references to various points in the CR.
Page 6, paragraph 3, line 2, spelling of name = Nickodemo **I'll pass this on to Steve.**

Page 12 - paragraph 2.4 we had asked for the removal of this rather strange paragraph – not seen in any other CR. Better than in the old version, but unnecessary. **This isn't personal, but if your successor doesn't hold up their end of the deal, then they have to talk to the grantor. This is the minimum protection for the grantor if a future grantee doesn't live up to their responsibilities.**

Page 14 – 4. (c) “certain locations” should state that this would be the building envelope. See above; the only location outside the 2 Ac. is in the woods for 5000 sq. ft. of agricultural buildings (that's 1/8 of an acre).

4. (o) these energy components need to be limited in location and scope as well – are we creating a wind farm, perhaps? **The energy facilities are restricted to supporting the permitted uses and that precludes a commercial wind or solar farm. In the future we are all probably going to have to do this.**

4. (p) what does this mean? The grantor will violate the restriction and then remedy (cure) it? Should be removed. **I can't think of a good example, but this seems like a reasonable protection of the conservation purposes in case the grantee becomes non-functional and refuses to convey the CR to another organization.**

Page 16 – 5.1(b) Does “Associated Improvements” mean that all these buildings, “...barns, stables, paddocks.....” will be confined to the Limited Building Area? **Yes. If so, then there is no need to have any of these buildings anywhere else. Again, only 5000 sq. ft. of agricultural only buildings can be outside the 2 Ac.**

Page 19 – 8 Agriculture and Forestry. The relatively small size of the property and the even more diminished size of it due to the setback regulations from Johnson's Pond, and the need for major alteration of the landscape to perform the activities suggested in this paragraph, would, as we have stated before, destroy the Conservation Values of the property. We therefore wish to limit such activities to selective cutting and the non-commercial keeping of horses or other animals. See introductory paragraph and PURPOSE. **Adequate protections are provided. See my comments in the intro paragraph.**

Page 20 – 8.1(b) No clear cutting – selective cutting only. 6.1(b) precludes clear cutting.

8.1(c) “All new improvements.....” must be in limited building area. **Again, only 1/8 Ac. Of structures are allowed outside the 2 Ac.**

Page 22 - 11 Acting in Good Faith; can not be “legislated” or determined. Another cause for dissent – get rid of it. **I'd hate to think of the alternative! This just protects both parties against an unreasonable and arbitrary other party.**

All of 11 assumes that the Grantee may come upon the property to check on what is being done, above the allowed twice a year? Is this correct? It isn't clear – only by inference – how can you know what is being done if you can't see it? **2(b) allows the grantee to come on the property unlimited times if they believe a violation has**

occurred. This is necessary to prevent the grantee from "fishing expeditions" at their whim.

Page 24 - 13 Why do we need the last sentence? It only encourages a grantor not to notify the grantee of any change in status. I see your point. I will run it by Steve to see if it can be removed or revised. The grantee shouldn't be able to prevent any permitted transfer by inaction.

Page 27 - 16.1 Reasonableness Standard - define "reasonable". Another bone of contention. Again, what is the alternative? I think this type of wording does have specific legal meaning. Check with your attorney.

Natasha Grigg for BTA/BOLT, Inc.

Subj: **Hill Property CR**
Date: 9/21/2007 1:10:34 P.M. Eastern Daylight Time
From: rpovenmire@town.boxford.ma.us
To: rtford@comcast.net, fdiluna@murthalaw.com, hcr5465@msn.com, jane@coehome.net,
juliamathews@comcast.net, KLegere@town.boxford.ma.us, lanasp@comcast.net,
patmorris72@hotmail.com, Peter.Richards@state.ma.us, rpovenmire@town.boxford.ma.us,
ocbr@verizon.net, cmsaturday@comcast.net
CC: mymol@aol.com

Hello All,

I have just returned from a walk of the Hill property on Washington Street. This is a 24 acre parcel opposite Ingeldsby Farm on Washington Street (look for the big yello colonial). The current owners are offering a Conservation Restriction to BTA-BOLT on approximately 21 acres with frontage on Johnsons Pond. It is a gorgeous piece of property and an incredible gift to the Town. The current owners are working on a very tight time schedule and will be looking for Conservation Commission signatures on the CR at the next meeting October 4. There is still work to be done to get the CR in order, and the owners are working on that. In order to prevent any avoidable delays, the owner has invited the ConsCom members to walk the property prior to the meeting on the 4th. I would be happy to lead such a walk, or members may choose to walk the property themselves. The site is easily accessible from Washington Street and there is a woods road that provides a good sense of the woodland area behind the existing house. The CR includes the woods behind the house, and the existing agricultural fields on both sides of the house. Please let me know your preference and I will contact the owners to let them know when you will be walking the property. Thanks.

Ross

Purpose

RIGHTS AND REMEDIES OF GRANTEE

2 Affirmative Rights of Gantee

- 2.1 Cure; Gantee's Remedies
- 2.2 Forbearance Not a Waiver
- 2.3 Acts Beyond Gantee's Control
- 2.4 Gantee's Obligations
- 2.5 Costs

PROHIBITED USES, RESERVED RIGHTS

3 Prohibited Uses

4 Reserved Rights

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TO	17
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13

WHEREAS, the Property has significant natural values of great importance to the Town of Boxford;

Unlawful

GRANT OF CONSERVATION RESTRICTION

WHEREAS, the Property has approximately 1694 feet of frontage on Johnson's Pond, a pristine Great Pond, and protection of the Property is important to the maintenance of the Town of Boxford;

THIS GRANT OF CONSERVATION RESTRICTION is made as a gift, for no consideration, by Judith M. Hills, who with her successors and assigns in title to all or any portion of the Property as hereinafter defined is herein referred to as "Grantor," in favor of BTA/BOLT, Inc. (together with any successors and assigns to such organization in accordance with the terms set forth below or by action of law, "Grantee" or "BTA/BOLT, Inc."), a non-profit corporation organized and existing under the laws of the Commonwealth of Massachusetts, located at 7 Elm Street, P.O. Box 95, Boxford, Massachusetts 01921. As used herein, "Grantee's Representatives" shall mean Grantee's representatives, employees, agents, guests, and invitees, or any one or more of such persons.

WHEREAS, Grantor is the owner in fee simple of certain unencumbered real property in the Town of Boxford, Essex County, Massachusetts, more particularly described in Exhibit A and Exhibit B-1, both Exhibits attached hereto and incorporated herein by this reference, and hereinafter referred to as the "Property". For Grantor's title, see deed of Pauline A. Hills to Judith M. Hills, dated June 24, 1998, and recorded with the Essex South Registry of Deeds in Book 14932, Page 24, and deed of Judith M. Hills, Trustee, to Judith M. Hills, dated November __, 2007, and recorded with the Essex South Registry of Deeds in Book __, Page __; and

WHEREAS, the Property has significant natural values of great importance to Grantee; and

WHEREAS, the Property has approximately 651 feet of frontage on Johnson's Pond, a pristine Great Pond, and protection of the Property is important to the maintenance of the water quality and the habitat in, on, and surrounding Johnson's Pond, which Pond also serves as the backup water supply for the City of Haverhill; and

WHEREAS the Property runs down to marshland with thriving cattail communities, has eskers and rock outcroppings, and a large well-maintained trail that circumnavigates the Property; and

WHEREAS, the Property includes a variety of natural communities, including healthy elm trees, black birches, oaks, maples, and stands of very large white pines; and

WHEREAS, the Property abuts Johnson's Pond, a Great Pond, with its population of swans, a variety of duck species, cormorants, and on land, turkey, coyote, deer, and fox; and

WHEREAS, maintaining the Property as provided herein protects the amount and diversity of open natural habitat available to wildlife in an area which would otherwise be threatened by development pressure; and

WHEREAS, accordingly, the Property constitutes a significant natural area which qualifies as a "...relatively natural habitat of fish, wildlife or plants, or similar ecosystem" as that phrase is used in Section 170(h)(4)(A)(ii) of the Internal Revenue Code of 1986, as amended, and the regulations thereunder (the "Code"), and protection of the Property will meet the requirements of Section 170(h)(4)(A)(ii) of the Code; and

WHEREAS, the Property abuts Washington Street, a main road through Boxford, and hundreds of passersby daily enjoy the views across the Property from Washington Street; and

WHEREAS, the Property sits across Washington Street from Ingaldsby Farm, a 300-acre working farm under Chapter 61A, and protection of the Property maintains the open character of this part of the Town of Boxford; and

WHEREAS, in very close proximity to the Property are other parcels of permanently protected land, including the Walter K. Morss Berry Farm (now owned by Nickodemo Scarfo), under Agricultural Preservation Restriction ("APR") held by the Commonwealth of Massachusetts, Alderbrook Farm (under APR), Anvil Farm (owned by the Town of Boxford), Hovey's Pond Meadow (owned by the Town of Boxford), Potter's Farm (owned by BTA/BOLT, Inc.), King's Tree Farm (currently in the process of being encumbered by a conservation restriction to be held by BTA/BOLT, Inc.), the Boxford Town Forest, Millbrook Meadow (owned by the Town of Boxford), the Chadwick Mill (owned by BTA/BOLT, Inc.), and the West Forty (under APR), all of which are identified in the Baseline Documentation Report as further defined herein and all of which contribute to the natural and open areas, habitat, and scenic character of the Town of Boxford; and

WHEREAS, accordingly, protection of the Property will accomplish a number of the factors determining "significant public benefit" under Treas. Reg. Section 1.170A-14(d)(4)(iv); and

WHEREAS, accordingly, protection of the Property will preserve open space pursuant to clearly delineated Federal, State and local government policies and will yield a significant public benefit, and will therefore meet the requirements of Section 170(h)(4)(iii)(II) of the Code;

WHEREAS, accordingly, protection of the Property will be for the scenic enjoyment of the general public and will yield a significant public benefit, and will therefore meet the requirements of Section 170(h)(4)(iii)(I) of the Code; and

WHEREAS, Grantor and Grantee desire to preserve the natural, scenic, agricultural and open space values of the Property (the "Conservation Values"); and

WHEREAS, the Conservation Values of the Property are further documented in the Baseline Documentation report, which memorializes the condition of the Property as of the effective date of this grant, a copy of which is on file at the offices of Grantee; and

WHEREAS, Grantor and Grantee believe that with the intelligent and careful use of conservation restrictions, the resources, habitat, beauty, and unique ecological character of the Property can be protected in a manner that permits continuing private ownership of land and its continuing use and enjoyment; and

WHEREAS, Grantor intends, as owner of the Property, to convey to Grantee the right to preserve and protect the Conservation Values in perpetuity and represents that the Property is free and clear of all encumbrances except for rights-of-way, restrictions, and reservations of record as of the effective date of this grant; and

WHEREAS, Grantee warrants that Grantee is a charitable organization described in Section 501(c)(3) of the Code, which organization, according to its mission statement, is "dedicated to preserving and protecting natural and aesthetically important land and wildlife habitat, including fields, forests wetlands, and trails to preserve the nature of Boxford;" and

WHEREAS, Grantee represents that Grantee is a "qualified organization," as that term is defined in Section 170(h)(3) of the Code, and is authorized by the laws of the Commonwealth of Massachusetts, including in particular M.G.L. Chapter 184, Sections 31-

33, to accept, hold, and administer interests in land including conservation restrictions; and

WHEREAS, Grantee has received and there remains in full force and effect a determination letter from the Internal Revenue Service, dated October 9, 1980, a copy of which has been provided to Grantor, to the effect that Grantee is a "publicly-supported" organization described in Section 509(a)(2) and Section 170(b)(1)(A)(vi) of the Code, and is not a private foundation under Section 509(a) of the Code; and

WHEREAS, Grantor and Grantee recognize the natural, scenic, and special character of the Property, and have the common purpose of the conservation and protection in perpetuity of the Property through the use of restrictions on the Property and with the transfer from Grantor to Grantee of affirmative rights for the protection of the Property, intending the grant of such restrictions and rights to qualify as a "qualified conservation contribution" under Section 170(h) of the Code;

NOW, THEREFORE, KNOW ALL MEN BY THESE PRESENTS, in consideration of the above and the mutual covenants, terms, conditions, and restrictions contained herein, and pursuant to Section 170(h) of the Code and the laws of the Commonwealth of Massachusetts, including M.G.L. Chapter 184, Sections 31-33, Grantor hereby voluntarily grants and conveys to Grantee a conservation restriction (the "Restriction") in perpetuity and for conservation purposes over the Property of the nature and character and to the extent hereinafter set forth. Grantor herein declares that the Property shall be held, mortgaged, encumbered, transferred, sold, conveyed, used, and occupied subject to the covenants, conditions, and restrictions hereinafter set forth, which covenants, conditions, and restrictions shall, subject to the terms of this Restriction, be deemed to run with the land in perpetuity and to burden the Property in perpetuity.

PURPOSE

1. **Purpose.** It is the purpose of this Restriction to assure that the Property will be retained forever predominantly in its natural, scenic, and open space condition for conservation purposes and to prevent any use of the Property that will significantly impair or interfere with the Conservation Values.

RIGHTS AND REMEDIES OF GRANTEE

2. **Affirmative Rights of Grantee.** Grantor hereby grants the following rights to Grantee, which rights shall be in addition to, and not in limitation of, any other rights and remedies available to Grantee:

(a) to prevent Grantor or third persons (whether or not claiming by, through, or under Grantor) from using or permitting any use of the Property that violates this Restriction, and to require of Grantor or third persons the restoration to the Property's condition immediately prior to such use of such areas or features of the Property that may be damaged by any such use;

(b) upon ten (10) days prior notice to Grantor, and without unreasonably interfering with Grantor's use and quiet enjoyment of the Property as restricted by this Restriction, to enter upon the Property (but not within building interiors) at such reasonable times and in such reasonable manner as Grantor and Grantee shall reasonably agree, in order to monitor Grantor's compliance with the terms of this Restriction, including but not limited to those monitoring rights more specifically set forth in paragraph 11, provided that in the absence of evidence which gives Grantee a reasonable basis to believe there has been a

violation of this Restriction (which evidence shall be made available to Grantor, in advance and in writing, followed by an opportunity for Grantor to reply thereto prior to Grantee's further action), such entry shall not occur more often than twice in any twelve-month period;

(c) to seek injunctive and other equitable relief against any violation of this Restriction, including without limitation relief requiring removal of offending structures and vegetation and other restoration of the Property to the condition that existed immediately prior to any such violation (it being agreed that Grantee will have no adequate remedy at law); and

(d) after providing Grantor with reasonable notice and a reasonable opportunity to Cure, as set forth in paragraph 2.1(a), to enforce this Restriction in the case of breaches by Grantor or by third persons (whether or not claiming by, through, or under Grantor) by appropriate legal proceedings.

2.1 Cure; Grantee's Remedies.

(a) In the event that Grantee becomes aware of a violation of the terms of this Restriction, Grantee shall give written notice (in accordance with the provisions of paragraph 16.6) to Grantor and request corrective action sufficient to abate such violation (a "Cure") and restore the Property to a condition substantially similar to that which existed immediately prior to such violation.

(b) Failure by Grantor within 30 days after receipt of such notice to Cure, to begin good faith efforts to Cure where completion of such action cannot be reasonably accomplished within 30 days, to initiate such other corrective action to such violation as appropriate in the circumstances and as may be reasonably requested by Grantee, or failure by Grantor to diligently pursue a Cure once commenced, shall entitle Grantee to: (i) bring an action at law or in equity in a court of competent jurisdiction to enforce this Restriction; (ii) require actions to be taken in

order to effect the restoration of the Property to a condition substantially similar to that which existed immediately prior to such violation; (iii) seek to enjoin any violation by temporary or permanent injunction; and (iv) recover reasonable damages arising from such violation.

(c) If Grantee, in its sole discretion reasonably exercised, determines that emergency circumstances require immediate action to prevent or mitigate significant damage to the Conservation Values, Grantee may pursue its remedies under this paragraph 2.1 with concurrent oral and written notice to Grantor and without waiting for the period for Cure to expire, provided, however, that any such remedy pursued shall be a remedy solely and directly related to the damage which has occurred. Grantee shall give concurrent oral and written notice for all such actions and shall provide Grantor with written notice of all actions taken by it pursuant to this paragraph 2.1(c) immediately thereafter.

2.2 **Forbearance Not a Waiver.** Any forbearance by Grantee to exercise its rights under this Restriction in the event of any violation of this Restriction shall not be deemed or construed to be a waiver by Grantee of such violation or another violation of this Restriction or of any of Grantee's rights under this Restriction. No delay or omission by Grantee in the exercise of any right or remedy upon any breach shall impair such right or remedy or be construed as a waiver.

2.3 **Acts Beyond Grantor's Control.** Nothing contained in this Restriction shall be construed to entitle Grantee to bring any action against Grantor for any injury to or change in the Property resulting from causes beyond Grantor's control, including, without limitation, acts of trespassers or the unauthorized or wrongful acts of third persons, fire, flood, storm, earth movement, and major tree or plant disease, or from any prudent action taken by Grantor intended to mitigate injury to the Property resulting from such causes. Notwithstanding the

foregoing, nothing herein shall preclude Grantor's and Grantee's rights to pursue any third party for damages to the Property from vandalism, trespass, or any other violation of this Restriction. Grantor and Grantee agree that in the event of damage to the Property from acts beyond Grantor's control, if Grantor and Grantee agree that it is desirable that the Property be restored, Grantor and Grantee will cooperate in attempting to restore the Property if feasible.

2.4 **Grantee's Obligations.** To the extent that Grantee by action or inaction does not perform or fulfill any affirmative, non-discretionary obligation required of Grantee pursuant to the terms of this Restriction, then Grantor shall give written notice (in accordance with the provisions of paragraph 16.6) of such obligation to Grantee and the parties shall cooperate and act in good faith to reach a resolution with respect to such obligation.

2.5 **Costs.** Grantor and Grantee shall each be responsible for their respective costs of enforcement and costs of suit, including attorney's fees, incurred in the enforcement of this Restriction. Notwithstanding the foregoing, in any case in which Grantor is found at fault by a court of competent jurisdiction, Grantor shall pay both party's costs of enforcement and costs of suit, including attorney's fees.

PROHIBITED USES; RESERVED RIGHTS

3. **Prohibited Uses.** Grantor will neither perform nor allow others to perform the following acts or uses, which are expressly forbidden on, over, under, or in connection with the Property, except as otherwise provided in paragraphs 4, 5, 6, 8, and 11:

(a) conveyance of a part or portion of the Property alone, or division, subdivision, or de facto subdivision of the Property;

(b) mining, surface mining, excavating, dredging, or removing from the Property

of soil, loam, peat, gravel, sand, hydrocarbons, rock, or other mineral resource or natural deposit;

(c) commercial or industrial uses of the Property, including commercial recreational activities;

(d) constructing, placing, or allowing to remain any temporary or permanent building, tennis court, landing strip, mobile home, swimming pool, asphalt or concrete pavement, sign, fence, billboard or other advertising display, antenna, utility pole, tower, conduit, line, or other temporary or permanent structure or facility on, above, or under the Property;

(e) cutting, removing, or otherwise destroying trees, grasses, or other vegetation;

(f) the installation of underground storage tanks or the placing, filling, storing, or dumping on the Property of soil, refuse, trash, vehicle bodies or parts, rubbish, debris, junk, waste, or other such substance, whether or not generated on the Property;

(g) including the Property or any portion thereof as part of the gross area of any other property not subject to this Restriction for the purposes of determining density, lot coverage, or open space requirements under otherwise applicable laws, regulations, or ordinances controlling land use and building density;

(h) transferring to any other property pursuant to a transferable development rights plan, cluster development arrangement, or otherwise, those development rights which are encumbered and extinguished by this Restriction;

(i) the use of motorized vehicles (including but not limited to motor bikes and snowmobiles) for recreational purposes; and

(j) any unanticipated use or activity on or at the Property which would impair conservation values, unless such use or activity is necessary for the protection of the

Conservation Values that are the subject of this Restriction, in which case such use or activity shall be subject to the approval of Grantee pursuant to the provisions of paragraph 11.

4. **Reserved Rights.** Notwithstanding any other provision of this Restriction, the following rights, uses, and activities on the Property shall be permitted by this Restriction:

- (a) the right to engage in all acts or uses not expressly prohibited herein that are not inconsistent with the purpose of this Restriction;
- (b) the right to all manner of access to and personal use and enjoyment of the buildings and grounds of the Property, including without limitation the right to construct, repair, remodel, expand, demolish, replace, rebuild, and maintain and make available utilities to, currently existing (as identified in the Baseline Documentation) or future lawfully permitted structures, and undertake activities (including but not limited to the use of temporary structures and vehicles for residential and farming and agricultural purposes) reasonably necessary to carry out the rights reserved to Grantor;
- (c) subject to the provisions of paragraphs 5, 8, and 11, the right to construct additional structures at certain locations on the Property;
- (d) subject to the provisions of paragraphs 6 and 11, the right to subdivide the Property into more than one ownership;
- (e) the right to cut and remove grass or other vegetation and to perform maintenance and upkeep around any permitted buildings on the Property, to the extent customary in connection with such buildings in the vicinity of the Property and not otherwise in violation of this Restriction;
- (f) the right to conduct selective cutting or clearing of vegetation and mowing and haying of fields or pastures for habitat enhancement and protection, fire protection, unpaved

trail and road maintenance, tick control, the preservation of vistas, or otherwise to preserve the present condition of the Property, and the right to clear brush and immature trees for the maintenance or restoration of pastureland and cropland;

(g) the right to drill for water on the Property and to make available water wells, water lines, and septic systems for any existing or permitted structures on the Property;

(h) subject to the provisions of paragraphs 8 and 11, the right to conduct forestry and agricultural activities for domestic or commercial purposes;

(i) the right to clear trails if reasonably necessary in connection with uses of the Property permitted by this Restriction, and, subject to the notice provisions of paragraph 11, the right to create new unpaved roads only for forestry and agricultural purposes or for access to permitted structures including to permitted structures on any abutting property owned by Grantor;

(j) the right to compost, burn, or store vegetative waste generated by permitted activities and uses and the right to store for removal at reasonable intervals normal and customary waste generated on the Property by permitted activities and uses;

(k) the right to dredge, excavate, and extract fill solely in connection with permitted activities and uses of the Property;

(l) the right to post or not post all or a portion of the Property against trespassing and hunting or fishing;

(m) the right to lease or grant other less-than-fee interests in all or any portion of the Property for any use or activity that is permitted by this Restriction, including but not limited to any commercial use permitted under this Restriction;

(n) non-commercial horseback riding and any other non-commercial passive

outdoor recreational activities, and activity and use ancillary thereto;

(o) the right to erect energy facilities in connection with permitted uses and activities, including but not limited to solar panels and windmills, except that such facilities may not be constructed in the Fields, as identified in the Baseline Documentation (hereinafter, the "Fields"), but may be constructed at the edges of the Fields that coincide with the northeast and southwest boundaries of the Property; and

(p) the right to enforce this Restriction in the event that Grantee fails to do so or is unable to do so.

5. Limited Building Area.

5.1 **Definitions.** The following definitions apply for purposes of this paragraph 5.

(a) "Residence" means a residential dwelling containing at a minimum permanently installed cooking or indoor or outdoor sanitary facilities. A Residence may include attached (or interior) household guest and employee quarters and an attached (or interior) home occupation or professional office for the occupant and may have Associated Improvements as hereinafter defined.

(b) "Associated Improvements" means such other buildings, structures, detached living quarters and/or guest quarters, recreational facilities, and improvements as are customarily appurtenant to comparable residential dwellings in the vicinity of the Property, including but not limited to garages, barns, stables, paddocks, run-in sheds, storage sheds, swimming pools, tennis courts, other recreational play pads and fields, energy transmission facilities and utilities including electric, solar, water, and septic systems, leach fields, telecommunication receiving and transmittal devices, gazebos, bird homes and nesting areas,

watering facilities, water pipelines, and other buildings and facilities for all personal, residential, agricultural, and forestry uses permitted under this Restriction.

(c) "Gross living area" is the total area of finished, above-grade, habitable residential space calculated by measuring the outside perimeter of the Residence (not including finished basements, attics, decks, and covered porches).

5.2 **Limited Building Area A.** Within Limited Building Area A, so identified on Exhibit B-2, attached hereto and incorporated herein by this reference, Grantor reserves the right (subject to the notice provisions of paragraph 11) to build, repair, remodel, expand, and replace one new Residence, so long as such structure does not exceed 3,000 square feet in gross living area, and Associated Improvements with respect to such Residence, provided that all improvements permitted by this paragraph 5.2 shall be confined within a contiguous building area not to exceed 2 acres in size. Grantor reserves the right to trim and prune vegetation so as to create a viewshed from the Residence to Johnson's Pond.

5.3 **Well and Septic System.** Grantor reserves the right to construct a well and septic system for each permitted residential structure on the Property. If it is not possible to construct any of the permitted wells or septic systems within the Limited Building Area, such wells or septic systems may be constructed outside the Limited Building Area to the minimum extent necessary to accommodate the requirements of applicable zoning and regulatory land use controls and in a manner that causes the least possible disturbance to the Conservation Values.

5.4 **Access to Residence; Utilities.** Notwithstanding any other provision of this Restriction, Grantor reserves the right to provide roads, rights-of-way, and utilities (outside of the Limited Building Area, if necessary, but in no case may any driveway or other accessway

be constructed in the Fields, but may be constructed at the edge of the Fields) to the permitted Residence and Associated Improvements on the Property, and to cut trees, grass, and other vegetation in order to carry out the activities permitted hereunder. A driveway servicing the improvements permitted in Limited Building Area A may be constructed within a fifty-foot (50') right-of-way (or more if required by zoning or other regulations) and such driveway must be adjacent to the edge of the existing tree line, as shown on Exhibit B-2, at the northeast border of the north Field. Improvements made under the provisions of this paragraph 5.4 shall be done in a manner so as to create the least possible disturbance to the Conservation Values (for example, by creating access along unpaved roads), and in no event shall such improvements be greater than those imposed or permitted by governmental requirements and/or consents. Notwithstanding the foregoing, parkways, roads, or trails (other than a driveway) may not be paved unless pursuant to governmental requirements and/or consents.

6. **Subdivision.** Any successor in title to any portion of the Property conveyed under the terms of this paragraph 6 shall be subject to this Restriction in all respects. Subject to the notice provisions of paragraph 11:

(a) Grantor reserves the right at any time to convey one or more parcels to any organization that at the time of such conveyance would qualify as an eligible assignee of this Restriction under the provisions of paragraph 12;

(b) Grantor reserves the right to convey portions of the Property (on which no Associated Improvements or structures suitable for human habitation may be constructed) for boundary adjustment purposes; and

(c) Grantor reserves the right to convey into separate ownership

(i) a lot (the size of the lot to be determined in Grantor's sole discretion, subject to zoning and other regulatory controls) that includes the permitted Residence and Associated Improvements; and

(ii) a lot that may be conveyed only to the owner of that parcel identified on Exhibit B-1 as "Lot 1".

7. **No Extinguishment Through Merger.** Grantor and Grantee herein agree that should Grantee (or any successor Grantee) come to own all or a portion of the fee interest in the Property, (i) said Grantee as successor in title to Grantor shall observe and be bound by the obligations of Grantor and the restrictions imposed upon the Property by this Restriction, as provided in paragraph 4; (ii) this Restriction shall not be extinguished, in whole or in part, through the doctrine of merger in view of the public interest in its enforcement; and (iii) said Grantee as promptly as practicable shall assign the Grantee interests in this Restriction of record to another holder in conformity with the requirements of this paragraph 7. Any instrument of assignment of this Restriction or the rights conveyed herein shall refer to the provisions of this paragraph 7, and shall contain language necessary to continue it in force.

8. **Agriculture and Forestry.** Grantor reserves the right to conduct activities in connection with agriculture and forestry on the Property for domestic or commercial purposes, and to construct, repair, and maintain new irrigation systems, pens, corrals, fences, barns, and related buildings if reasonably necessary in connection with said agriculture and forestry activities. For the purposes hereof "agriculture" and "forestry" shall include agriculture, animal husbandry, floriculture, and horticulture; the use of vehicles and machinery in connection therewith; equestrian activities and other activities relating to the stabling, breeding, raising, training, riding, care, and sale of horses; the production and sale of plant and animal products

grown or produced on the Property, including the growing, stocking, storing, and distribution of forest trees of any size capable of producing timber and other wood products; and the cutting and sale of timber, firewood, and other wood products.

8.1 Further Limitations on Activities Permitted Under Paragraph 8.

(a) There shall be no grazing or pasturing of animals for agricultural purposes within two hundred feet (200') of Johnson's Pond. In connection with any agricultural or forestry activity on the Property, including but not limited to weed control, the use of chemical fertilizers, herbicides, pesticides, fungicides, and natural controls will be permitted only if such use is not in violation of applicable federal, state, and local statutes and regulations and only to the extent such use does not have a demonstrable detrimental effect on the Conservation Values.

(b) Commercial forestry activities shall be conducted in accordance with a M.G.L. Chapter 132 Forest Cutting Plan (hereinafter the "Forest Plan"), designed to protect the conservation values of the Property, prepared by a Massachusetts certified professional forester who shall certify in writing to Grantee that said Forest Plan is in accordance with the provisions of this Restriction.

(c) No improvements or other structures permitted under the provisions of this paragraph 8 may be constructed in the Fields, except for fences and one run in shed in each Field, such sheds to be located in the fence lines (i) adjacent to the existing tree lines at the rear of the Fields, as shown on Exhibit B-2, or (ii) in the case of the north Field the northeast border, or (iii) in the case of the south Field the southwest border. All new improvements or other new structures permitted under the provisions of this paragraph 8 (not including the permitted run in sheds) may not exceed a total of 5,000 square feet of ground coverage.

9. **Access.** No right of access to the Property or to any portion of the Property is conveyed by this Restriction, except as expressly provided herein.

10. **Costs, Liabilities, and Taxes.** Grantor shall retain all responsibilities and shall bear all costs and liabilities of any kind related to the ownership, operation, upkeep, and maintenance of the Property, including the maintenance of general liability insurance coverage, and including any taxes assessed on Grantor's interest in the Property.

10.1 **Hazardous Material.** Grantor shall hold harmless, indemnify, and defend Grantee and Grantee's members, directors, officers, employees, agents, and contractors and the heirs, personal representatives, successors, and assigns of each of them from and against all liabilities, penalties, costs, losses, damages, expenses, causes of action, claims, demands, or judgments, including, without limitation, reasonable attorney's fees, arising from or in any way connected with the presence or release of any hazardous material or substance of any kind on the Property. This paragraph 10.1 shall not apply in the case of any hazardous material or substance in any manner placed on or released from the Property by Grantee or Grantee's Representatives.

10.2 **Indemnification.** Grantor shall hold harmless, indemnify, and defend Grantee from any and all liabilities, injuries, losses, damages, judgments, costs, expenses of every kind, and fees, including reasonable attorney's fees actually incurred, Grantee may suffer or incur as a result of or arising out of the negligent act or omission of Grantor, Grantor's employees, agents, guests, and invitees on the Property. Grantee agrees to hold harmless, indemnify, and defend Grantor from any and all liabilities, injuries, losses, damages, judgments, costs, expenses of every kind, and fees, including reasonable attorney's fees actually incurred, Grantor may suffer or incur as a result of or arising out of the negligent act

or omission of Grantee or Grantee's Representatives.

APPROVAL BY GRANTEE; NOTICE

11. **Acting in Good Faith.** Grantor and Grantee shall cooperate and shall act reasonably and in good faith to arrive at agreement on any matter in connection with any determinations that are necessary to be made by them (either separately or jointly) under this paragraph 11.

11.1 **Grantee's Approval or Withholding of Approval.** When Grantee's approval is required and has been requested by Grantor, or when Grantee has asserted a violation of this Restriction as to which a Cure has been effected and Grantor requests a withdrawal of such assertion, Grantee shall grant or withhold its approval in writing, or issue such withdrawal, as the case may be, within thirty (30) days of receipt of Grantor's written request therefor. Approval, or the issuance of such withdrawal, as the case may be, by Grantee shall not be unreasonably withheld or delayed. In the case of withholding of approval, Grantee shall notify Grantor in writing with reasonable specificity of the reasons for withholding of approval, and the conditions, if any, on which approval might otherwise be given. Failure of Grantee to respond in writing within such thirty (30) day period shall be deemed to constitute written approval (or the issuance of a withdrawal, as aforesaid) by Grantee of any request submitted, provided that no such approval is for a matter contrary to the express terms of this Restriction.

11.2 **Approval by Grantee of Certain Uses or Activities.** (i) Any use or activity permitted under paragraph 3(j) shall be subject to the prior approval of Grantee. Grantor shall request such approval in writing and shall include therewith information identifying the

proposed activity and the reasons for the proposed activity with reasonable specificity.

Grantee's evaluation of the request shall generally take into account the extent to which use of the site for the proposed activity would destroy important habitat or would have a continuing and material adverse effect on the movement of wildlife, and the extent to which the proposed activity or use of the site for the proposed activity would otherwise significantly impair the Conservation Values.

11.3 **Notice to Grantee.** Following Grantee's approval under paragraph 11.2, and not less than thirty (30) days prior to (i) the commencement of any use or activity approved under paragraph 11.2; (ii) the creation of new unpaved roads under paragraph 4(i); or (iii) the construction of a new or replacement residence under paragraph 5.2, Grantor agrees to notify Grantee in writing (in accordance with the provisions of paragraph 16.6) of the intention to exercise such right. The notice shall describe the nature, scope, location, timetable, and any other material aspect of the proposed activity in sufficient detail to permit Grantee to monitor such activity. At Grantee's sole discretion, Grantee may permit commencement of the activity less than thirty (30) days after receiving Grantor's written notice. See also paragraph 13 with respect to Grantor's written notice to Grantee concerning a transfer of any interest in all or a portion of the Property.

11.4 **Breach.** Failure to secure such approval or give such notice as may be required by this paragraph 11 shall be a violation of this Restriction notwithstanding any other provision of this Restriction and shall entitle Grantee to such rights or remedies as may be available under paragraph 2.

11.5 **Compliance Certificates.** Upon request by Grantor, Grantee shall within thirty (30) days execute and deliver to Grantor any document that may be requested by

Grantor, including an estoppel certificate or compliance certificate, to certify to the best of Grantee's knowledge Grantor's compliance with any obligation of Grantor contained in this Restriction or otherwise to evidence the status of this Restriction.

ASSIGNMENT BY GRANTEE; TRANSFERS BY GRANTOR

12. **Limitations on Assignment by Grantee.** The benefits of this Restriction shall not be assignable by Grantee, except (i) if as a condition of any assignment, Grantee requires that the purpose of this Restriction continues to be carried out; (ii) if the assignee, at the time of assignment, qualifies under Section 170(h) of the Code and M.G.L. Chapter 184, Sections 31-33, as an eligible donee to receive this Restriction directly; and (iii) after good faith consultation with Grantor. Grantee agrees to provide written notice to Grantor at least sixty (60) days prior to any intended assignment of this Restriction. Any attempted assignment by Grantee of the benefits of this Restriction contrary to the terms hereof shall be invalid but shall not operate to extinguish this Restriction.

13. **Transfers by Grantor.** Grantor agrees to incorporate by reference the terms of this Restriction in any deed or other legal instrument by which Grantor transfers any interest in all or a portion of the Property, including, without limitation, a leasehold interest. Grantor further agrees to give written notice to Grantee of the proposed transfer of any such interest at least twenty (20) days prior to the date of such transfer. The failure of Grantor to perform any act required by this paragraph shall not impair the validity of this Restriction or limit its enforceability in any way, nor shall such failure impair the validity of any transfer.

AMENDMENT; EXTINGUISHMENT

14. **Limitations on Amendment.** If circumstances arise under which an amendment to or modification of this Restriction would be appropriate, subject to the provision of Article 97 of the Constitution of the Commonwealth of Massachusetts, if applicable, Grantor and Grantee may by written agreement amend this Restriction; provided that no amendment shall be made that will adversely affect the qualification of this Restriction or the status of Grantee under any applicable laws, including Sections 170(h) and 501(c)(3) of the Code and the laws of the Commonwealth of Massachusetts. Any such amendment shall be consistent with the purpose of this Restriction, shall not affect its perpetual duration, shall not permit additional residences on the Property other than residences permitted by this Restriction on its effective date, and shall not permit any impairment of the Conservation Values. Any such amendment shall be suitable for recording and shall be recorded in the Registry of Deeds of Essex County, Massachusetts, after all required signatures have been affixed thereto, including that of the Massachusetts Secretary of Energy and Environmental Affairs. Nothing in this paragraph shall require Grantor or Grantee to agree to any amendment or to consult or negotiate regarding any amendment. Grantor and Grantee may amend this Restriction to be more restrictive to comply with the provisions of Section 2031(c) of the Code.

15. **Limitations on Extinguishment.** If circumstances arise in the future that render the purpose of this Restriction impossible to accomplish, this Restriction can only be terminated or extinguished, whether with respect to all or part of the Property, by judicial proceedings in a court of competent jurisdiction. Unless otherwise required by applicable law

at the time, in the event of any sale of all or a portion of the Property (or any other property received in connection with an exchange or involuntary conversion of the Property) after such termination or extinguishment, and after the satisfaction of prior claims and net of any costs or expenses associated with such sale, Grantor and Grantee shall divide the proceeds from such sale (minus any amount attributable to the value of improvements made by Grantor after the effective date of this Restriction, which amount is reserved to Grantor) in accordance with their respective percentage interests in the fair market value of the Property, as such percentage interests are determined under the provisions of paragraph 15.1, adjusted, if necessary, to reflect a partial termination or extinguishment of this Restriction. All such proceeds received by Grantee shall be used by Grantee in a manner consistent with Grantee's corporate purposes as of the effective date of this grant.

15.1 Percentage Interests. For purposes of this paragraph, the parties hereto stipulate that as of the effective date of this grant the Restriction and the restricted fee interest in the Property each represent a percentage interest in the fair market value of the Property. Said percentage interests shall be determined by the ratio of the value of the Restriction on the effective date of this grant to the value of the Property, without deduction for the value of the Restriction, on the effective date of this grant. The values on the effective date of this grant shall be those values used to calculate the deduction for federal income tax purposes allowable by reason of this grant, pursuant to Section 170(h) of the Code. The parties shall include the ratio of those values with the Baseline Documentation of the Property (on file at Grantee's offices) and shall amend such values, if necessary, to reflect any final determination thereof by the Internal Revenue Service or court of competent jurisdiction. For purposes of this paragraph, the ratio of the value of the Restriction to the value of the Property

unencumbered by the Restriction shall remain constant, and the percentage interests of Grantor and Grantee in the fair market value of the Property thereby determinable shall remain constant.

15.2 Condemnation. If all or any part of the Property is taken under the power of eminent domain by public, corporate, or other authority, or otherwise acquired by such authority through a purchase in lieu of a taking, Grantor and Grantee shall join in appropriate proceedings at the time of such taking to recover the full value of the interests in the Property subject to the taking and all incidental or direct damages resulting from the taking. All expenses reasonably incurred by the parties to this Restriction in connection with such taking shall be paid out of the recovered proceeds. Grantor and Grantee shall be respectively entitled to compensation from the balance of the recovered proceeds in conformity with the provisions of paragraphs 15 and 15.1 (with respect to the allocation of proceeds). The respective rights of Grantor and Grantee set forth in this paragraph 15.2 shall be in addition to, and not in limitation of, any rights they may have at common law.

GENERAL PROVISIONS

16. General Provisions.

16.1 Reasonableness Standard. Grantor and Grantee shall follow a reasonableness standard and shall use their best efforts to make any determinations that are necessary or are contemplated to be made by them (either separately or jointly) under this Restriction in a timely manner and shall cooperate with one another and shall take all other reasonable action suitable to that end.

16.2 **Controlling Law.** The interpretation and performance of this Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

16.3 **Severability; Liberal Construction.** If any provision of this Restriction or the application thereof to any person or circumstance is found to be invalid, the remainder of the provisions of this Restriction shall not be affected thereby. If any provision in this instrument is found to be ambiguous, an interpretation consistent with the purpose of this Restriction that would render the provision valid shall be favored over any interpretation that would render it invalid.

16.4 **Entire Agreement.** This instrument sets forth the entire agreement of the parties with respect to the Restriction and supersedes all prior discussions, negotiations, understandings, or agreements relating to the Restriction, all of which are merged herein. No alteration or variation of this instrument shall be valid or binding unless contained in an amendment that complies with paragraph 14.

16.5 **Successors.** The covenants, terms, conditions, restrictions, benefits, and burdens of this Restriction shall be binding upon and inure to the parties hereto and their respective successors, personal representatives, heirs, and assigns and shall continue as a servitude running in perpetuity with the Property, provided that (i) no owner shall be responsible except for violations occurring on such owner's land while owner thereof; (ii) in the event of a breach of the terms hereof by the owner or owners of any subdivided portion of the Property, no owner or owners of any other portion of the Property shall be liable for such breach; and (iii) any of the rights herein reserved to Grantor may be exercised by any owner or owners from time to time of any lot within the Property.

16.6 **Notices.** Any notice, demand, request, consent, approval, or communication that either party desires or is required to give to the other shall be in writing and either served personally or sent by first class mail, postage prepaid, addressed as follows:

To Grantor: Judith M. Hills
106123 VT Rt. 106
P. O. Box 98
South Woodstock, VT 05071

With a copy to: Stephen J. Small, Esq.
Law Office of Stephen J. Small, Esq., P.C.
75 Federal Street, Suite 1100
Boston, Massachusetts 02110-1911

To Grantee: BTA/BOLT, Inc.
7 Elm St., P.O. Box 95
Boxford, Massachusetts 01921

or to such other address as any of the above parties from time to time shall designate by written notice to the others. Notice shall be deemed given and received as of the date of its manual delivery or as of the date of its mailing.

16.7 **Effective Date.** Grantor and Grantee intend that the restrictions arising hereunder take effect on the day and year this **DEED OF CONSERVATION RESTRICTION** is recorded in the Registry of Deeds of Essex County, Massachusetts, after all required signatures have been affixed hereto. This Restriction shall be timely recorded. Grantee may re-record this instrument at any time as may be required to preserve its rights in this Restriction.

16.8 **Pre-existing Rights of the Public.** Approval of this Restriction pursuant to M.G.L. Chapter 184, Section 32 by any municipal officials and by the Secretary of Energy and Environmental Affairs is not to be construed as representing the existence or non-

existence of pre-existing rights of the public, if any, in and to the Property, and such pre-existing rights of the public, if any, are not affected by the granting of this Restriction.

TO HAVE AND TO HOLD, the said Conservation Restriction, unto the said Grantee and its successors and assigns forever. This **DEED OF CONSERVATION RESTRICTION** may be executed in several counterparts and by each party on a separate counterpart, each of which when so executed and delivered shall be an original, but all of which together shall constitute one instrument.

IN WITNESS WHEREOF Grantor and Grantee have set their hands under seal on the dates set forth below, no Massachusetts deed excise stamps being affixed hereto since this is a gift and no stamps are required.

GRANTOR
JUDITH M. HILLS

11.28.07
Date

J M Hills
My Commission Expires: 3/14/2010

STATE/COMMONWEALTH OF New Hampshire

County of Grafton, ss:

On this 28 day of November, 2007, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory evidence of identification which was Personal Knowledge to be the person whose name is signed on the preceding or attached document, and acknowledged to me that s/he signed it voluntarily for its stated purpose.

Patricia Hamel
Notary Public
My Commission Expires:

Patricia Louise Hamel
Notary Public
State of New Hampshire
My Commission Expires
January 7, 2009

APPROVAL BY SELECTMEN

ACCEPTED BY GRANTEE:

November 20, 2007
Date

Natasha Grigg for
BTA/BOLT, Inc.

COMMONWEALTH OF MASSACHUSETTS

County of Essex, ss:

On this 20th day of November, 2007, before me, the undersigned notary public, personally appeared NATASHA GRIGG, proved to me through satisfactory evidence of identification which was PERSONAL KNOWLEDGE to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he/she signed it voluntarily for its stated purpose as PRESIDENT of BTA/BOLT, Inc.

Ross M. Povenmire
Notary Public

My Commission Expires: 3/12/2010

Ross M. Povenmire
Notary Public
My Commission Expires
March 12, 2010

APPROVAL BY SELECTMEN

We, the undersigned, being a majority of the Selectmen of the Town of Boxford, Massachusetts, hereby certify that a meeting duly held on November 19, 2007, the Selectmen voted to approve the foregoing Deed of Conservation Restriction, pursuant to M.G.L., Chapter 184, Section 32.

Selectmen:

Stephen A Davis, Chair:

Stephen A Davis

Barbara A. Beardsley:

Barbara A. Beardsley

Charles J. Costello:

Charles J. Costello

Barbara G. Jessel:

Barbara G. Jessel

Peter C. Perkins:

Peter C. Perkins

COMMONWEALTH OF MASSACHUSETTS

County of Essex, ss.

On this 19th day of November 2007, before me, the undersigned notary public, personally appeared Board of Selectmen,
_____, and _____, proved to me through satisfactory evidence of identification which was Personally Known to be the persons whose names are signed on the preceding or attached document, and acknowledged to me that they signed it voluntarily for its stated purpose as the Board of Selectmen for the Town of Boxford.

Patricia A. Shields
Notary Public

My Commission Expires: 21-3-2011



PATRICIA A. SHIELDS
Notary Public
Commonwealth of Massachusetts
My Commission Expires
September 27, 2013

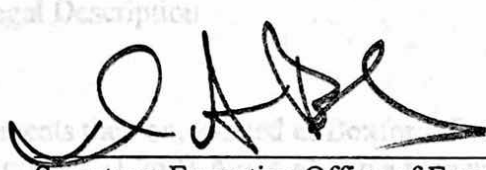
EXHIBIT A

**APPROVAL BY SECRETARY, EXECUTIVE OFFICE OF ENERGY
AND ENVIRONMENTAL AFFAIRS
COMMONWEALTH OF MASSACHUSETTS**

The undersigned, Secretary, Executive Office of Energy and Environmental Affairs of the Commonwealth of Massachusetts, hereby certifies that the foregoing Deed of Conservation Restriction has been approved in the public interest pursuant to M.G.L., Chapter 184, Section 32.

Date:

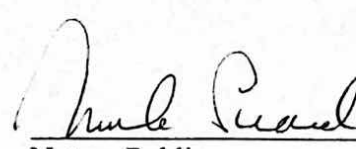
12/6, 07


Secretary, Executive Office of Energy
and Environmental Affairs

COMMONWEALTH OF MASSACHUSETTS

Suffolk County, ss.

On this 6th day of December, 2007, before me, the undersigned notary public, personally appeared Jan A. Bowles, proved to me through satisfactory evidence of identification which was personal knowledge of identity to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he signed it voluntarily for its stated purpose as Secretary of Energy and Environmental Affairs for the Commonwealth of Massachusetts.


Notary Public

My Commission Expires: 12/15/2011

EXHIBIT A**CONSERVATION RESTRICTION FROM****JUDITH M. HILLS****TO****BT&BOLT, INC.****Legal Description**

A certain parcel of land with any improvements thereon, located in Boxford, Essex County, Massachusetts, being shown as Lot 2 comprising 21.7673 Acres +/-, on a plan entitled "Plan of Land at 17 Washington Street in Boxford, Massachusetts" by Atlantic Engineering & Survey Consultants, Inc., dated March 19, 2007 and revised April 2, 2007 and recorded with the Essex South Registry of Deeds in Plan Book 409, Plan 13.

For the Grantor's source of title see deed of Pauline A. Hills to Judith M. Hills, dated June 24, 1998, and recorded with the Essex South Registry of Deeds in Book 14932, Page 24 and deed of Judith M. Hills, Trustee, to Judith M. Hills, dated November 14, 2007, and recorded with the Essex South Registry of Deeds in Book 27324, page 250.

- Date: October 6, 2007

Signed:

Julia Schneider Mathews
- Julia Mathews
Lora K. Seguin Spillman
Pete Richards